

	2026-01550091	THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for petitioner California TD Specialists (Petitioner) to deposit the funds at issue with the court. On February 19, 2026, Petitioner filed a petition under Civil Code section 2924j regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale for the Property. After paying off the trust deed for the Property and Petitioner's fees and expenses, Petitioner sought to deposit the surplus funds of \$143,391.14 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner was unable to determine the priority of the written claims received to the surplus proceeds. On July 10, 2026, the court granted Petitioner's petition and ordered Petitioner to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. There is no indication in the court's files that Petitioner deposited the surplus funds as ordered. The court thus cannot grant any of the claims received at this time. (See Civ. Code § 2924j(d) ["Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled..."].) Indeed, the court does not currently have the funds to be distributed. The court will therefore CONTINUE the hearing as set forth above and orders Petitioner to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. <u>TO BE CLEAR, PETITIONER IS NOT DISCHARGED FROM ITS OBLIGATIONS UNTIL THE FUNDS ARE DEPOSITED WITH THE COURT AND THEREFORE NO DISCHARGE HAS OCCURRED. REGARDLESS OF ANY DEPOSIT, PETITIONER'S COUNSEL IS ORDERED TO APPEAR AT THE CONTINUED HEARING TO ENSURE ALL FUNDS HAVE BEEN DEPOSITED. ANY FAILURE TO COMPLY WITH THE COURT'S ORDERS MAY RESULT IN SANCTIONS.</u> The clerk of the court is directed to give notice of the foregoing hearing by first class mail to Petitioner and all claimants identified in attachment 8 to the petition and to all parties who have filed any claim or other document in this action.
3.	<i>Ferree vs. Ford Motor Company</i> 2026-01578587	Before the court is a petition by Jorge Ferree (Petitioner) to appoint an arbitrator and compel arbitration of his claim for pre-litigation attorney fees against respondent Ford Motor Company (Ford). For the reasons set forth herein, the hearing on the petition is CONTINUED TO THURSDAY,

OCTOBER 15, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for the parties to nominate potential arbitrators.

The parties agree binding arbitration is the proper procedure for determining the issue of attorney fees pursuant to Code of Civil Procedure section 871.24, subdivision (f), as well as paragraph 1(c)(i) of the Standardized SBA Release attached to the Petition as Exhibit 1. The parties, however, have been unable to agree on selection of an arbitrator, and therefore Petitioner seeks an order appointing an arbitrator pursuant to Code of Civil Procedure section 1281.6.

Section 1281.6 states, "When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

Here, neither party has submitted the names of any person to act as arbitrator. Although Ford has submitted names of four arbitration companies, Section 1281.6 specifically refers to nomination of "persons" and not "companies." The court orders Petitioner and Ford each to file a notice of nomination of arbitrators in which they each nominate five specific individuals to serve as arbitrator. A CV or other biographical information should be attached for each nominee demonstrating their experience and qualifications to serve as an arbitrator in a matter seeking prelawsuit attorney fees under the Song-Beverly Act. Petitioner and Ford are ordered to file and serve the notice of nominees on or before October 1, 2026. Upon receipt of the lists, counsel for Petitioner and Ford are ordered to meet and confer regarding the nominees in an effort to agree upon one. If the parties are unable to agree, the court will narrow it down to a list of five and proceed as specified in section 1281.6.

Accordingly, the hearing on the petition is **CONTINUED** as set forth above.

Petitioner's counsel is ordered to give notice of this ruling.

4.	<i>Stradling, Yocca, Carlson & Rauth LLP vs. Avenir Wellness Solutions, Inc.</i> 2026-01572452	Before the court is the petition to confirm attorney-client fee arbitration award filed by petitioner Stradling, Yocca, Carlson and Rauth, LLP (Petitioner). As more fully set forth below, the hearing on this petition is CONTINUED TO THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M. IN DEPARTMENT C23, for an amended petition to be filed and proper proof of service. By this petition, Petitioner seeks to confirm the arbitration award against respondent Avenir Wellness Solutions, Inc., fka Cure Pharmaceutical Holding Corp. (Respondent) that Hon. Kirk H. Nakamura (Ret.) issued from the parties' arbitration held on December 22, 2025. The award is dated April 14, 2026. Although the arbitration involved an attorney-client fee dispute arising from Petitioner's representation of Respondent in earlier litigation and Respondent's failure to pay Petitioner the agreed upon fees, the arbitration was conducted as a contractual arbitration not a mandatory fee arbitration under the Mandatory Fee Arbitration Act (Bus. & Prof. Code, § 6200, et seq.). In filing the petition, Petitioner used the Judicial Council Form Petition that is used to confirm arbitration awards that become binding pursuant to the terms of the Mandatory Fee Arbitration Act. Indeed, section 8 of the form requires the petition to check the box stating the grounds on which the award became binding—i.e., by subsequent agreement of the parties or because no party requested a trial de novo within 30 days. Moreover, arbitrations under Mandatory Fee Arbitration Act generally are conducted through a local bar association or the State Bar; they are not conducted through private arbitration providers like JAMS, which was the arbitration provider in this case. The arbitration award Judge Nakamura issued makes clear the arbitration was conducted pursuant to an agreement to arbitrate, not the Mandatory Fee Arbitration Act. At pages 1-2 of the award, under the heading "Jurisdiction," Judge Nakamura explains the arbitration was conducted pursuant to an agreement to arbitrate contained in the Engagement Letter. Code of Civil Procedure section 1285.4 sets forth the essential terms of a petition to confirm a contractual arbitration award as follows: "A petition under this chapter shall: [¶] (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have
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